meant to be robust guarantees against legislative action, with judicial deference to Parliament being a thing of the past. At best, the court's decision disregarded the real problems caused by the parallel criminal justice process that TADA established. At worst, the court's decision placed a stamp of endorsement on the 'most tyrannical of laws'[30] – one that in practice imposed heavy burdens upon those who could least withstand them. The court demonstrated that it was still capable of being – to borrow Lord Atkin's words once again – 'more executive minded than the executive'.

Only a few months before the Kartar Singh judgement, a new human rights body – the National Human Rights Commission (NHRC) – was set up by the Narasimha Rao-led Congress government. The NHRC was set up in response to fears of an international backlash following widespread reports of custodial violence and police atrocities. Ranganath Misra, former chief justice of India, was the first chairperson of the NHRC.

The NHRC was openly dissatisfied with the Supreme Court's decision in the Kartar Singh case. In 1994, it adopted a 'three-pronged strategy' to address the problems that TADA gave rise to. First, it monitored the implementation of TADA by the police and public officials on the ground. Second, it prepared a dossier seeking to convince the Supreme Court to reconsider its decision. Third, it worked towards convincing MPs not to renew TADA as its renewal date (in 1995) drew close yet again. The third strategy was the most significant, as developing a public consensus against renewing TADA was preferable to the uncertainty of litigation.

Justice Misra was personally invested in ensuring that TADA was not renewed. In a letter to MPs, he strongly condemned the law and observed that the NHRC would not be in a position to fulfil its mandate if the statute remained on the books. Justice Misra also gave several interviews and delivered lectures advocating that TADA not be renewed. In Hyderabad, he commented on the large number of TADA cases that had been filed in Andhra Pradesh, despite it being relatively peaceful.[31] The position he took in interviews was decisive: 'The opportunity to have a fair